State vs Fahim @ Bhoma on 16 August, 2023

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 IN THE COURT OF SH. SANJAY SHARMA-II : ADDL. SESSIONS JUDGE-03,
              (CENTRAL): TIS HAZARI COURTS, DELHI

SC No.           :      28927/2016
FIR No.          :      413/2016
PS               :      Sarai Rohilla
Under Section    :      307/186/353/332/506/34 IPC
Case ID          :      DLCT01-012017-2016
State            Versus    1.    Fahim @ Bhoma
                                 S/o Mr. Saleem @ Kala
                                 R/o Jhuggi No. 29
                                 Behind Furkaniya Masjid
                                 Shahzada Bagh, Inderlok
                                 Delhi
                              2. Saddam
                                 S/o Mr. Mustafa
                                 R/o Jhuggi No. 16/49
                                 Gali No. 19/26, Rakhi Market
                                 Zakhira, Delhi-110015
Date of Institution        : 05.09.2016
Date of Arguments          : 16.08.2023
Date of Judgment           : 16.08.2023
                           JUDGMENT
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INTRODUCTION:

1. The case of the prosecution is that on 23.05.2016 at about 10.30 p.m. near Platform No. 2, Daya Basti Railway Station, Delhi, the accused persons alongwith JCL 'M' and 'N', in furtherance of their common intention, voluntarily obstructed HC Satpal Singh, Railway Protection Force (RPF) (Hereinafter 'the complainant') in discharge of his public functions and used criminal force against him and caused hurt to him with intent to prevent or deter him from discharging his duty and caused injuries to him with such intention or knowledge and under such circumstances that if they would have caused the death of the complainant, they would have been guilty of murder of the complainant. Thus, the accused persons were prosecuted for committing offences under Section 186/34, 353/34, 332/34 and 307/34 of 'The Indian Penal Code, 1860' (In short 'IPC').

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2. The case of the prosecution is that on 23.05.2016, the complainant was assigned duty from 04.00 p.m. to 12.00 mid-night at Daya Basti Railway Station, vide departure entry Ex.PW10/A. He was patrolling on railway track to prevent incidents of chain pulling.

3. On 23.05.2016 at about 10.30 p.m., the complainant had seen the accused persons alongwith JCL 'M' and 'N' near Platform No. 2. He made enquiry from them regarding reason of their presence there. On this, one of the accused persons stated that he used to prevent them from chain pulling and they started beating him. One of the accused persons caused injuries on his neck and hips with some object. The accused persons ran away from the place of incident while extending threat to kill him. He informed the incident to PW-1 Ramesh Chand, Station Master, Daya Basti Railway Station who made call at 100.

4. On 23.05.2016 at about 22:48:37 hrs., PW-13 HC Ishwar Singh, Channel Operator, Extn. No. 139, CPCR, Head Quarter, received a call from Phone No. 23127207 that 'Daya Basti Railway Station par 3RP ke staff ko logo ne chaku markar ghayal kar diya h', vide PCR Form Ex.PW13/A.

5. On 23.05.2016 at about 11.30 p.m., PW-11 ASI Ranjeet Singh, In-Charge, PCR Van, Sugar-46 admitted the complainant in Casualty of Hindu Rao Hospital, Delhi.

6. On 24.05.2016 at 12.02 a.m., PW-6 Ct. Shambhu, Duty Officer, PP Inderlok, PS Sarai Rohilla received a PCR call that 'Daya Basti Railway Station par G.R.P. ke staff ko logo ne chaku maar kar ghayal kar diya', vide DD No. 2PP Ex.PW15/A. He conveyed the said PCR call, through telephone, to PW-15 SI Rahul Singh Malik.

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7. PW-14 Ct. Jitender Kumar, Duty Constable, Hindu Rao Hospital, Delhi informed PP Inderlok, PS Sarai Rohilla regarding admission of the complainant in Hindu Rao Hospital, Delhi in injured condition, vide DD No. 3 Ex.PW6/A.

8. PW-3 Dr. Iftiquar Khan, Casualty Medical Officer (CMO), Hindu Rao Hospital, Delhi examined the complainant, vide MLC No. 3368/16 Ex.PW3/A. He kept blood stained clothes of the complainant in a sealed parcel and handed over the said sealed parcel and a sample seal to PW-14 Ct. Jitender Kumar. He referred him to Department of Surgery.

9. According to MLC Ex.PW3/A, the complainant sustained 'sharp wound over left side of neck measuring 1 x 4 cm', 'sharp wound over gluteus measuring 1 x 3 cm and 1 x 5 cm' and 'sharp wound over left side besides gluteus measuring 1 x 3 cm'. The nature of weapon was opined as 'sharp'.

10. PW-4 Dr. Abhishek, Senior Resident, Department of Surgery, Hindu Rao Hospital, Delhi examined the complainant and given opinion that the nature of injury sustained by the complainant was 'simple', vide endorsement Ex.PW4/A.

11. On receipt of DD No. 2PP, PW-15 SI Rahul Singh Malik alongwith PW-8 Ct. Virender Kumar reached Hindu Rao Hospital, Delhi where he found the complainant under treatment.

He collected his MLC. He recorded his statement Ex.PW2/A. He seized the said sealed parcel from PW-14 Ct. Jitender Kumar alongwith a sample seal, vide seizure memo Ex.PW14/A.

12. PW-15 SI Rahul Singh Malik alongwith PW-8 Ct. Virender and the complainant reached PS Sarai Rohilla where he prepared tehrir Ex.PW15/B and handed it over to PW-5 ASI Jai Kumar, Duty Officer, PS Sarai Rohilla for registration of case under Section 506/186/353/332/34 IPC.

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13. On 24.05.2016 at 07.00 a.m., PW-5 ASI Jai Kumar, Duty Officer, PS Sarai Rohilla recorded FIR No. 413/2016 under Section 506/186/353/332/34 IPC at PS Sarai Rohilla Ex.PW5/A. He assigned further investigation of the case to PW-15 SI Rahul Singh Malik.

14. Thereafter, PW-15 SI Rahul Singh Malik alongwith PW-8 Ct. Virender Kumar and the complainant reached at the place of incident where he prepared site plan of the place of incident Ex.PW15/C at the instance of the complainant. He made enquiry regarding the accused persons. However, he could not find any clue regarding the accused persons. He added Section 307 IPC. He deposited the case property in malkhana.

15. On 26.05.2016 at about 10.00 a.m., PW-15 SI Rahul Singh Malik alongwith PW-12 Ct. Mupendra, on receipt of a secret information, apprehended the accused, namely, Fahim @ Bhoma near Furkaniya Masjid. He arrested him, vide arrest memo Ex.PW12/A. He interrogated him and recorded his disclosure statement Ex.PW15/D wherein he disclosed involvement of the accused, namely, Saddam, JCL 'M' and 'N' and pointed out the place of incident, vide memo Ex.PW15/E. He kept the accused, namely, Fahim @ Bhoma in muffled face and produced him before Mr. Sachin Sangwan, Ld. MM, Tis Hazari Courts, Delhi. He filed an application for his Test Identification Parade (TIP) Ex.PW15/F.

16. On 26.05.2016, Mr. Sachin Sangwan, Ld. MM, Tis Hazari Courts, Delhi assigned the said application to Ms. Neha Gupta Singh, Ld. MM-03, Central, Tis Hazari Courts, Delhi for TIP as his link MM. However, the accused, namely, Fahim @ Bhoma refused to participate in Test Identification Parade (TIP) despite statutory warning, vide TIP proceedings Ex.A1.

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17. On 27.05.2016 at about 11.30 a.m., PW-15 SI Rahul Singh Malik alongwith PW-7 Ct. Ratan Singh apprehended the accused, namely, Saddam from Rakhi Market, Inderlok, Delhi, at the instance of the accused, namely, Fahim @ Bhoma, vide arrest memo Ex.PW7/A. He pointed out the place of incident, vide memo Ex.PW7/C. He kept the accused, namely, Saddam in muffled face and produced him before Mr. Sachin Sangwan, Ld. MM, Tis Hazari Courts, Delhi. He filed an application for his

Test Identification Parade (TIP) Ex.PW15/H.

18. Mr. Sachin Sangwan, Ld. MM, Tis Hazari Courts, Delhi assigned the said application to Ms. Ambika Singh, Ld. MM-06, Central, Tis Hazari Courts, Delhi for TIP. However, the accused, namely, Saddam refused to participate in Test Identification Parade (TIP) despite statutory warning, vide TIP proceedings Ex.A2.

19. PW-9 Ravi Shankar Ghosh, ASC/RPF/Delhi (West)/Northern Railway made complaint under Section 195 Cr.P.C. for prosecution of the accused persons, namely, Fahim @ Bhoma and Saddam, vide complaint Ex.PW9/A.

20. On completion of investigation, PW-15 SI Rahul Singh Malik charge-sheeted the accused persons for offences punishable under Section 307/332/186/353/506/34 IPC. COMMITTAL PROCEEDINGS:

21. Vide order dated 29.08.2016, the jurisdictional Magistrate committed the case to the Court of Session. CHARGE:

22. On appraisal of material on record, the accused persons were charged for committing offences under Section 186/34, 353/34, 332/34 and 307/34 IPC to which they pleaded not guilty and claimed trial.

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23. In order to prove the charges, the prosecution examined 15 witnesses, as under:

> The witnesses Description of the witnesses PW-1 Ramesh Chand Station Master, Daya Basti Railway Station PW-2 HC Satpal Singh, RPF The complainant / injured PW-3 Dr. Iftiquar Khan CMO, Hindu Rao Hospital PW-4 Dr. Abhishek SR, Deptt. of Surgery, Hindu Rao Hospital PW-5 SI Jai Kumar Duty Officer, PS Sarai Rohilla PW-6 ASI Shambhu DD writer, PP Inderlok, PS Sarai Rohilla PW-7 HC Ratan Singh Arrest witness qua Saddam PW-8 HC Virender Accompanied IO SI Rahul Singh Malik PW-9 Ravi Shankar Ghosh ASC/RPF/Delhi (West)/Northern Railway PW-10 Ct. Satish Kumar, Brought departure and arrival entry of the RPF complainant PW-11 SI Ranjeet Singh In-Charge, PCR Van, Sugar-46 PW-12 Ct. Mupendra Arrest witness qua Fahim @ Bhoma PW-13 ASI Ishwar Singh Channel Operator, Extn. No. 139, CPCR PW-14 Ct. Jitendra Kumar Duty Constable, Hindu Rao Hospital PW-15 SI Rahul Singh Malik Investigating Officer ADMISSION OF DOCUMENTS U/SEC. 294 CR.P.C.:

24. The accused, namely, Fahim @ Bhoma admitted following document:

Sl. No.	List of documents	Exhibit
1.	TIP proceedings dated 26.05.2016	Ex.A1

ADMISSION OF DOCUMENTS U/SEC. 294 CR.P.C.:

25. The accused, namely, Saddam admitted following document:

Sl. No.	List of documents	Exhibit
1.	TIP proceedings dated 27.05.2016	Ex.A2

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PLEA OF THE ACCUSED, NAMELY, FAHIM @ BHOMA:

26. Incriminating circumstances appearing in evidence were explained to the accused, as required under Section 313 Cr.P.C. He denied each and every circumstance appearing in evidence against him. He stated that he was not in Delhi on the date of incident. He stated that he did not make any disclosure statement. He stated that his photograph was taken in police station and shown to the complainant. He stated that the witnesses wrongly identified him. He claimed false implication and pleaded innocence. He pleaded, as under:

> "Question No. 41: Why the witnesses have deposed against you?
>
> Answer: I had just come from Jaipur and I was called to PP Inderlok and I was severely beaten and Sardar Ji was called there. Police officials asked me as to who had caused injury to Sardar Ji. I was sent to another room. Thereafter, I do not know as to what had happened."

PLEA OF THE ACCUSED, NAMELY, SADDAM:

27. Incriminating circumstances appearing in evidence were explained to the accused, as required under Section 313 Cr.P.C. He denied each and every circumstance appearing in evidence against him. He stated that he was lifted from his house. He stated that his photographs were taken in police station and shown to the complainant. He stated that the witnesses are false and interested witnesses and they identified to implicate him in this case. He claimed false implication and pleaded innocence.

APPEARANCE:

28. I have heard arguments of Mr. Amit Dabas, Ld. Addl. PP for the State and Mr. Diwakar Chaudhary, Amicus Curiae for the accused, namely, Fahim @ Bhoma and Advocate for the accused, namely, Saddam and examined the evidence. FIR No. 413/2016 State vs. Fahim @ Bhoma & Anr. Page No. 7 of 22 CONTENTIONS OF THE PROSECUTION:

29. Ld. Addl. PP for the State contended that the complainant is an injured witness. He contended

that the complainant narrated the incident. He contended that the complainant identified the accused persons. He contended that the complainant had no enmity against the accused persons. He contended that evidence of an injured witness cannot be discarded in the absence of compelling reasons. He contended that the evidence of the complainant is credible and reliable. He contended that there was no delay in reporting of the incident and registration of FIR. He contended that evidence of the complainant is corroborated by PW-1 Ramesh Chand, Station Master, medical evidence and contemporary documents i.e. relevant DD entries and FIR. He contended that PW-9 Ravi Shankar Ghosh, ASC/RPF/Delhi (West)/Northern Railway proved complaint under Section 195 Cr.P.C. for prosecution of the accused persons. He contended that the accused persons caused incised injuries upon neck and hip of the complainant with a sharp object and it could have proved fatal. He contended that the accused persons voluntarily caused hurt to a public servant while he was performing his official duty with the intention to prevent or deter him from performing his duty. He contended that prosecution proved charges under Section 186/34, 353/34, 332/34 and 307/34 IPC against the accused persons 'beyond reasonable doubt'.

CONTENTIONS OF THE DEFENCE:

30. Ld. Defence Counsel contended that the prosecution failed to prove its case beyond reasonable doubt. He contended that the accused persons were falsely implicated in this case.

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31. Ld. Defence Counsel contended that there are material discrepancies pertaining to the time and place of arrest of the accused persons. He contended that the complainant did not give physical description of the assailants in his statement. He contended that photographs of the accused persons were shown to the complainant in the police station. He contended that the accused persons rightly refused to participate in Test Identification Parade (TIP). He contended that the complainant has not stated the nature of weapon. He contended that the complainant has not stated the role of the accused persons in the incident. He contended that the nature of injury sustained by the complainant is 'simple'. He contended that the said injuries are not dangerous. He contended that from the nature of weapon, nature of injuries and attendant circumstances, the requisite intention or knowledge, as required under Section 307 IPC, does not exist. He contended that in any case, the prosecution failed to establish charge under Section 307/34 IPC. BURDEN OF PROOF:

32. Golden thread which permeates through web of criminal jurisprudence is that the accused is presumed to be innocent unless proved guilty. The prosecution must bring cogent and credible evidence to prove the charges 'beyond reasonable doubt'. There is a long mental distance between "may be true" and "must be true". This basic and golden rule only helps to maintain the vital distinction between "conjectures" and "conclusions". The prosecution is required to prove its case beyond 'reasonable doubt' and not 'all doubts'. The evidence must be 'weighed' and not 'counted'.

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33. In Ashish Batham vs. State of M.P., (2002) 7 SCC 317, Hon'ble Supreme Court of India held, as under:

> "8. Realities or truth apart, the fundamental and basic presumption in the administration of criminal law and justice delivery system is the innocence of the alleged accused and till the charges are proved beyond reasonable doubt on the basis of clear, cogent, credible or unimpeachable evidence, the question of indicating or punishing an accused does not arise, merely carried away by the heinous nature of the crime or the gruesome manner in which it was found to have been committed. Mere suspicion, however strong or probable it may be is no effective substitute for the legal proof required to substantiate the charge of commission of a crime and graver the charge is, greater should be the standard of proof required. Courts dealing with criminal cases at least should constantly remember that there is a long mental distance between "may be true" and "must be true"

and this basic and golden rule only helps to maintain the vital distinction between "conjectures" and "sure conclusions" to be arrived at on the touchstone of a dispassionate judicial scrutiny based upon a complete and comprehensive appreciation of all features of the case as well as quality and credibility of the evidence brought on record."

34. In Sheila Sebastian vs. R. Jawaharaj and Another, (2018) 7 SCC 581, Hon'ble Supreme Court of India held, as under:

> "27. A reasonable doubt has already been thoroughly explained in Latesh v. State of Maharashtra wherein "reasonable doubt" has been enunciated by this Court as (at SCC p. 83, para 46) "a mean between excessive caution and excessive indifference to a doubt, further it has been elaborated that reasonable doubt must be a practical one and not an abstract theoretical hypothesis."

35. In Collector of Customs, Madras & Ors. vs. D. Bhoormall, (1974) 2 SCC 54, Hon'ble Supreme Court of India held, as under:

> "30.....the prosecution or the Department is not required to prove its case with mathematical precision to a demonstrable degree; for, in all human affairs absolute certainty is a myth, and - as Prof. Brett felicitously puts it - "all exactness is a fake".

FIR No. 413/2016 State vs. Fahim @ Bhoma & Anr. Page No. 10 of 22 El Dorado of absolute proof being unattainable, the law accepts for it probability as a working substitute in this work-a-day world. The law does not require the prosecution to prove the impossible. All that it requires is the establishment of such a degree of probability that a prudent man may, on its basis, believe in the existence of the fact in issue. Thus, legal proof is not necessarily perfect proof; often it is nothing more than a prudent man's estimate as to the probabilities of the case.

31. The other cardinal principle having an important bearing on the incidence of burden of proof is that sufficiency and weight of the evidence is to be considered - to use the words of Lord Mansfield in Blatch v. Archer - "according to the proof which it was in the power of one side to prove, and in the power of the other to have contradicted"....."

36. In Latesh alias Dadu Baburao Karlekar v. State of Maharashtra, (2018) 3 SCC 66, Hon'ble Supreme Court of India held, as under:

> "46. In our opinion, an ingenious mind can question anything and, on the other hand, there is nothing which it cannot convince. When you consider the facts, you have a reasonable doubt as to whether the matter is proved or whether it is not a reasonable doubt in this sense. The reasonableness of a doubt must be a practical one and not on an abstract theoretical hypothesis. Reasonableness is a virtue that forms as a mean between excessive caution and excessive indifference to a doubt."

APPRECIATION OF EVIDENCE:

37. In Munna Lal vs. State of Uttar Pradesh, 2023 SCC OnLine SC 80, Hon'ble Supreme Court of India delineated principles for appreciation of evidence, as under:

> "28. Before embarking on the exercise of deciding the fate of these appellants, it would be apt to take note of certain principles relevant for a decision on these two appeals. Needless to observe, such principles have evolved over the years and crystallized into 'settled principles of law'. These are:
>
> (a). Section 134 of Indian Evidence Act, 1872, enshrines the well-recognized maxim that evidence has to be weighed and not counted. In other words, it is the quality of evidence that matters and not the quantity.

FIR No. 413/2016 State vs. Fahim @ Bhoma & Anr. Page No. 11 of 22 As a sequitur, even in a case of murder, it is not necessary to insist upon a plurality of witnesses and the oral evidence of a single witness, if found to be reliable and trustworthy, could lead to a conviction.

(b). Generally speaking, oral testimony may be classified into three categories, viz.:

> (i) Wholly reliable;
>
> (ii) Wholly unreliable;
>
> (iii) Neither wholly reliable nor wholly unreliable.

The first two category of cases may not pose serious difficulty for the court in arriving at its conclusion(s). However, in the third category of cases, the court has to be circumspect and look for corroboration of any material particulars by reliable testimony, direct or circumstantial, as a

requirement of the rule of prudence.

(c). A defective investigation is not always fatal to the prosecution where ocular testimony is found credible and cogent. While in such a case the court has to be circumspect in evaluating the evidence, a faulty investigation cannot in all cases be a determinative factor to throw out a credible prosecution version.

(d). Non-examination of the Investigating Officer must result in prejudice to the accused; if no prejudice is caused, mere non-examination would not render the prosecution case fatal.

(e). Discrepancies do creep in, when a witness deposes in a natural manner after lapse of some time, and if such discrepancies are comparatively of a minor nature and do not go to the root of the prosecution story, then the same may not be given undue importance."

EVIDENTIARY VALUE OF INJURED WITNESSES:

38. Testimony of an injured witness has been accorded a special status in law. The fact that PW-2 HC Satpal received injuries establishes his presence at the scene of crime. In other words, presence of injury is an inbuilt guarantee of his presence at the time of incident. His evidence cannot be discarded in absence of compelling reasons. He would not spare actual assailant in order to falsely implicate someone.

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39. In Sadakat Kotwar & Anr. vs. State of Jharkhand, 2021 SCC OnLine SC 1046, Hon'ble Supreme Court of India held, as under:

> "2.....As held by this Court in the case of State of M.P. vs. Mansingh, (2003) 10 SCC 414 para 9, the evidence of an injured eye-witness has great evidentiary value and unless compelling reasons exist, their statements are not to be discarded lightly....."

40. In Lakshman Singh vs. State of Bihar, (2021) 9 SCC 191, Hon'ble Supreme Court of India held, as under:

> "9.1.....It is further observed that "where witness to occurrence was himself injured in the incident, testimony of such witness is generally considered to be very reliable, as he is a witness that comes with an inbuilt guarantee of his presence at the scene of crime and is unlikely to spare his actual assailant(s) in order to falsely implicate someone". It is further observed that "thus, deposition of injured witness should be relied upon unless there are strong grounds for rejection of his evidence on basis of major contradictions and discrepancies therein. 9.2. The aforesaid principle of law has been reiterated again by this Court in Ramvilas and it is held that "evidence of injured witnesses is entitled to a great weight and very cogent and convincing grounds are required to discard their evidence". It is further observed that "being

> injured witnesses, their presence at the time and place of occurrence cannot be doubted".

41. In Baleshwar Mahto and Another vs. State of Bihar and Another, (2017) 3 SCC 152, Hon'ble Supreme Court of India held, as under:

> "12.....When the eyewitness is also an injured person, due credence to his version needs to be accorded. On this aspect, we may refer to the following observations in Abdul Sayeed v. State of M.P. : (SCC pp. 271-72, paras 28-30)"

42. The evidence of an injured witness must be given due weightage. His statement is generally considered to be very reliable. It is unlikely that he would spare the actual assailants in order to falsely implicate someone else. FIR No. 413/2016 State vs. Fahim @ Bhoma & Anr. Page No. 13 of 22 ANALYSIS AND DISCUSSION:

43. PW-2 HC Satpal Singh is an injured witness. He is author of the case FIR. He is the complainant. He is a material witness. He deposed, as under:

> "On 23.05.2016, I was posted as Head Constable at Railway Protection Force. I was performing my duties at Daya Basti Railway Station from 4.00 p.m. to 12.00 midnight. I was patrolling on the tracks to prevent chain pulling in the trains. At about 10.00 p.m. or 10.15 p.m., I was coming from platform No.
>
> 2. I saw four boys. I enquired from them as to why they were standing there. I asked them to go. They started hurling abuses at me. All the four boys assaulted me by some sharp edged object. I could not see the weapon of offence. I sustained one injury in my neck and three injuries on the rear side of my thigh. All the four boys threatened me and ran away from the spot. I went to Station Master, Daya Basti Railway Station and informed him about the incident. He made a call on 100 number. After some time, PCR Van came and I was taken to Hindu Rao Hospital. In the hospital, I was provided medical aid. IO came in the hospital and recorded my statement which is Ex.PW2/A which bears my signatures at point A. After being discharged from the hospital, I alongwith IO went to the spot and IO prepared the site plan of the spot. I was called to identify the assailants. But the assailants had refused to take part in test identification proceedings.
>
> During the incident, I had hit two boys by danda. During the course of investigation, once I had gone to Tis Hazari Court and I had identified accused Faeem @ Bhoma and Saddam outside a Court room. At that time, they were in the custody of the police. IO had recorded my statement. Both the accused persons are present in the Court (correctly identified)."

(emphasis supplied)

44. It is evident that the complainant narrated the incident. He described the injuries. He identified the accused persons. In a group attack, it is not possible for any person to describe role of each of the accused persons. Such incidents take place in a flash of second that it is impossible to record the exact sequence of the events and role of each of the accused persons.

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45. From his evidence, it is proved that the accused persons were present at the place of incident and he had asked them about reason of their presence in the railway premises and thereafter, they abused him and one of them caused as many as 4 injuries to him with a sharp edged object. There is nothing in his cross-examination which can obliterate substratum of his evidence.

46. As regards contention of the defence that the photographs of the accused persons were taken in police station and shown to the complainant in the police station, it is seen that the defence did not confront the complainant with the fact that the photographs of the accused persons were shown to him. Moreover, PW-15 SI Rahul Singh Malik denied the suggestion that he had taken photographs of the accused persons in the police station. The contention of the defence was a shot in the air having no foundation in the evidence.

47. The complainant was on duty at Daya Basti Railway Station to prevent chain pulling and stone pelting, vide DD No. 26 dated 23.05.2016 Ex.PW10/A.

48. PW-1 Ramesh Chand, Station Master, Daya Basti Railway Station made a call at 100 from office telephone No. 11231227207. He deposed that on 23.05.2016 at about 11.00 p.m., the complainant came to his office in injured condition and he stated that four boys had stabbed him. He stated that the complainant had stab injuries on his thigh.

49. PW-11 ASI Ranjeet Singh, In-Charge, PCR Van, Sugar-46 admitted the complainant in Hindu Rao Hospital in injured condition at 11.30 p.m. on 23.05.2016.

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50. PW-3 Dr. Iftiquar Khan examined the complainant and observed following injuries on his person with a sharp object:

(a) Sharp wound over left side of neck measuring 1 x 4 cm;

(b) Sharp wound over gluteus measuring 1 x 3 cm and 1 x 5 cm; and

(c) Sharp wound over left side besides gluteus measuring 1 x 3 cm.

51. On 24.05.2016 at about 07.00 a.m., the case FIR was registered at PS Sarai Rohilla.

52. Therefore, it is evident that the incident was promptly reported, recorded and culminated into registration of FIR without loss of time. There was no scope for any manipulation, fabrication or embellishment in the case of the prosecution.

53. The accused, namely, Faim @ Bhoma was arrested on 26.05.2016. He was kept in muffled face. On the said date, he was produced before the Jurisdictional Magistrate for his Test Identification Parade (TIP). However, he refused to participate in Test Identification Parade (TIP). There was no delay in Test Identification Parade (TIP) of the said accused.

54. The accused, namely, Saddam was arrested on 27.05.2016. He was kept in muffled face. On the said date, he was produced before the Jurisdictional Magistrate for his Test Identification Parade (TIP). However, he refused to participate in Test Identification Parade (TIP). There was no delay in Test Identification Parade (TIP) of the said accused.

55. Refusal to participate in Test Identification Parade (TIP) without justiciable reason is a highly incriminating circumstance against the accused persons.

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56. Therefore, refusal of participation in Test Identification Parade (TIP) is a corroborating circumstance against the accused persons.

57. At the cost of prolixity, it would be appropriate to recapitulate the evidence that the complainant is an injured witness. He has identified the accused persons. He had no enmity with the accused persons. He had no reason to falsely implicate the accused persons. The evidence of the complainant is unblemished and credible. His evidence is 'wholly reliable'.

58. PW-9 Ravi Shankar Ghosh, ASC/RPF/Delhi (West)/Northern Railway proved complaint under Section 195 Cr.P.C. for prosecution of the accused persons, namely, Fahim @ Bhoma and Saddam, vide complaint Ex.PW9/A.

59. Therefore, the prosecution proved that the accused persons voluntarily obstructed the complainant, a public servant in discharge of his public functions and further, they voluntarily caused hurt to the complainant with intent to prevent or deter him from discharging his duty and further, they used criminal force against the complainant during the course of performance of his duty and further, they voluntarily caused injuries upon his neck and hip with a 'sharp edged object'.

LEGAL PROVISION:

60. Statutory provision applicable to this case is, as under:

> "307. Attempt to murder. - Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall be punished with imprisonment of either description for a term

> which may extend to ten years, and shall also be liable to fine; and if hurt is caused to any person by such act, the offender shall be liable either to [imprisonment for life], or to such punishment as is hereinbefore mentioned."

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61. In Surender Singh vs. State (Union Territory of Chandigarh), 2021 SCC OnLine SC 1135, Hon'ble Supreme Court of India held, as under:

> "18.....In State of Madhya Pradesh v. Saleem @ Chamaru, this Court, while re-appreciating the true import of Section 307 held as follows:
>
> "12. To justify a conviction under this section, it is not essential that bodily injury capable of causing death should have been inflicted. Although the nature of injury actually caused may often give considerable assistance in coming to a finding as to the intention of the accused, such intention may also be deduced from other circumstances, and may even, in some cases, be ascertained without any reference at all to actual wounds. The section makes a distinction between an act of the accused and its result, if any. Such an act may not be attended by any result so far as the person assaulted is concerned, but still there may be cases in which the culprit would be liable under this section. It is not necessary that the injury actually caused to the victim of the assault should be sufficient under ordinary circumstances to cause the death of the person assaulted. What the court has to see is whether the act, irrespective of its result, was done with the intention or knowledge and under circumstances mentioned in the section. An attempt in order to be criminal need not be the penultimate act. It is sufficient in law, if there is present an intent coupled with some overt act in execution thereof.
>
> 13. It is sufficient to justify a conviction under Section 307 if there is present an intent coupled with some overt act in execution thereof. It is not essential that bodily injury capable of causing death should have been inflicted. The section makes a distinction between the act of the accused and its result, if any. The court has to see whether the act, irrespective of its result, was done with the intention or knowledge and under circumstances mentioned in the section. Therefore, an accused charged under Section 307 IPC cannot be acquitted merely because the injuries inflicted on the victim were in the nature of a simple hurt."

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62. In Suryakant Baburao @ Ramrao vs. State of Maharashtra and Others, (2020) 17 SCC 518, Hon'ble Supreme Court of India held, as under:

> "8.....To justify conviction under Section 307 IPC, intention of causing death or that it was done with the intention of causing such injury which is likely to cause death is

> necessary to constitute the offence. Although the nature of injury actually caused would be of considerable assistance in coming to a finding as to the intention of the accused. such intention may also be deduced from other circumstances."

63. It is by now a lucid dictum that for the purpose of constituting an offence under Section 307 IPC, there are two ingredients that a Court must consider, first, whether there was any intention or knowledge on the part of the accused to cause death of the victim, and, second, such intent or knowledge was followed by some overt actus rea in execution thereof, irrespective of the consequential result as to whether or not any injury is inflicted upon the victim. The Courts may deduce such intent from the conduct of the accused and surrounding circumstances of offence, including the nature of weapon used or the nature of injury, if any. The manner in which occurrence took place may enlighten more than the prudential escape of a victim. It is thus not necessary that a victim shall have to suffer an injury dangerous to his life, for attracting Section 307 IPC. INGREDIENTS OF SECTION 307 IPC:

64. In order to attract Section 307 IPC, the prosecution has to establish:

> (i) the intention or knowledge to commit murder; and
>
> (ii) the act done by the accused.

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65. As noted above, the complainant sustained 'sharp wound over left side of neck measuring 1 x 4 cm' and 'sharp wound over gluteus measuring 1 x 3 cm and 1 x 5 cm' and 'sharp wound over left side besides gluteus measuring 1 x 3 cm'. The nature of injury is 'simple'.

66. In his evidence, the complainant could not state the nature of weapon of offence. At the time of his examination on 23.05.2016 at 11.30 p.m., he was 'conscious' and 'oriented'. He did not require any intense medical intervention. He did not require hospitalization. He deposed that he remained in hospital for about 3 hrs. He accompanied PW-15 SI Rahul Singh Malik to PS Sarai Rohilla and thereafter, to the place of incident for identification of the scene of crime.

67. It cannot be said that the accused persons caused the said injuries with the intention or knowledge to cause such bodily injury capable of causing death. Therefore, Section 307 IPC would not apply.

68. In Abdul Ansar vs. State of Kerala, 2023 SCC OnLine SC 775, Hon'ble Supreme Court of India held, as under:

> "13. By applying principles incorporated in sub- section (2) of Section 222 of the Criminal Procedure Code, 1973 (for short, "CrPC"), the Court can consider whether the appellant has committed any other offence which is a minor offence in comparison to the offence for which he is tried."

69. Therefore, the accused persons are guilty of voluntarily causing simple hurt to the complainant with a sharp object. Thus, they have committed an offence under Section 324 IPC.

70. The prosecution succeeded in bringing home charges under Section 186/34, 332/34, 353/34 and 324/34 IPC.

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71. Accordingly, the accused persons, namely, Fahim @ Bhoma and Saddam are convicted for committing offences under Section 186/34, 332/34, 353/34 and 324/34 IPC.

72. A copy of judgment be given to the accused persons.

SANJAY by SANJAY SHARMA SHARMA Date: 2023.08.17 11:12:03 +0530 Announced in the open Court SANJAY SHARMA-II on this 16th August, 2023 Addl. Sessions Judge-03 (Central) Tis Hazari Courts, Delhi FIR No. 413/2016 State vs. Fahim @ Bhoma & Anr. Page No. 21 of 22 State vs. Fahim @ Bhoma & Anr.

CNR No.: DLCT01-012017-2016 Under Section 307/186/353/332/506/34 IPC PS Sarai Rohilla 16.08.2023 Present : Mr. Amit Dabas, Ld. Addl. PP for the State.

Mr. Diwakar Chaudhary, Amicus Curiae for the accused, namely, Fahim @ Bhoma and Advocate for the accused, namely, Saddam.

The accused, namely, Saddam is present.

The accused, namely, Fahim @ Bhoma is not produced from JC.

The Court has heard final arguments. Vide separate judgment announced in the open Court, the accused persons, namely, Fahim @ Bhoma and Saddam are convicted for committing offences under Section 186/34, 332/34, 353/34 and 324/34 IPC. As directed by Hon'ble High Court of Delhi in the case of Karan vs. State of NCT of Delhi, Crl. Appeal No. 352/2020 decided on 27.11.2020, the convicts are directed to state their paying capacity in the format prescribed as 'Annexure A' within 7 days. The State shall state expenses incurred by the prosecution on affidavit. Issue notice to SHO, PS Sarai Rohilla to submit antecedents of the convicts. Issue notice to concerned Jail Superintendent to submit conduct report and nominal roll of the convicts. To come up for arguments on sentence on 23.08.2023. Issue notice to concerned Jail Superintendent to produce the accused, namely, Fahim @ Bhoma before this Court physically. by SANJAY SANJAY SHARMA SHARMA Date:

> 2023.08.17 11:12:19 +0530 Sanjay Sharma-II ASJ-03, Central District Tis Hazari Courts, Delhi 16.08.2023 FIR No. 413/2016 State vs. Fahim @ Bhoma & Anr. Page No. 22 of 22